



# **STATE OF MISSISSIPPI**

## **DEPARTMENT OF FINANCE AND ADMINISTRATION**

### **NEGOTIATED CONTRACT**

#### **Maintenance, Repairs, and Operations**

**Contract Number: 820000000**



**State of Mississippi  
Negotiated Contract  
Maintenance, Repairs, and Operations  
Contract Number: 820000000**

This negotiated contract by and between the **State of Mississippi** (hereinafter “Mississippi”) and **Vendor Name** is made effective as of **September 1, 2026**, (“the Contract Effective Date”) and is attached to and governed by the Office of Purchasing, Travel and Fleet Management (“OPTFM”). Mississippi and **Vendor Name** are collectively referred to herein as the “Parties.”

**NOW, THEREFORE**, in consideration of the foregoing mutual promises and covenants contained herein, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Parties hereby agree as follows:

**1. General Conditions**

**1.1. Term**

The term of this agreement shall commence on **September 1, 2026**, and shall terminate on **August 31, 2027**, or one year from the contract effective date with no additional renewal periods.

**1.2. Length of Price Guarantee**

Pricing shall be firm for a twelve (12) month period. Price increases are ***not*** allowed during the term of this contract.

**1.3. Transportation Terms**

All freight and shipping costs are the responsibility of **Vendor Name** and are not reimbursable. All items must be transported F.O.B Destination.

**1.4. Payment Terms and Invoices**

***MS Code Section 31-7-305(3) allows a state entity to pay invoices within forty-five (45) days without penalty.***

The State requires the vendor to submit invoices electronically throughout the term of the agreement. Vendor invoices shall be submitted to the state agency using the processes and procedures identified by the State. Payments by state agencies shall be made and remittance information provided electronically as directed by the State. The vendor understands and agrees that the State is exempt from the payment of taxes. All payments shall be in United States currency.

## **1.5. Addendum Period: Additions/Deletions**

### **1.5.1. Addendum Periods**

Additions or deletions will be permitted **only during designated addendum periods**. A **first addendum period** will be allowed during the **first five (5) business days of the contract**, beginning on the contract start date. This initial period allows vendors to make limited additions or deletions necessary to align with initial contract implementation. A **second addendum period** will be held **January 1st through January 15th**, during which vendors may submit additions or deletions for changes to become **effective March 1st**. **Price changes are not allowed during the addendum periods.**

### **1.5.2. Addendum Submission Requirements**

When requesting additions or deletions, **Vendor Name** shall submit a formal written request electronically (via email to the analyst listed in this proposal). The request must include:

- A cover letter identifying the requested additions or deletions.
- A list of all items proposed for addition or deletion.
- All required documentation as outlined in the Proposal Requirements for any new items.
- Product literature supporting the request.

When adding a distributor to the original distributor's list, the new distributor's information shall be submitted electronically (via email) using the attached Excel spreadsheet with read/write capabilities. The submission must include the distributor's full name, address, contact person, telephone number, fax number, and email address. The distributor must be registered in the **State of Mississippi's e-procurement system** prior to submitting a request for addition.

## **1.6. State of Mississippi Terms and Conditions**

**Vendor Name** acknowledges, accepts, and agrees to comply with the **State of Mississippi's Standard Terms and Conditions**, as outlined in **Attachment A**. Failure to comply with these terms and conditions may result in the termination of this contract.

## **1.7. Format and Guidelines for Proposals**

The Contractor shall comply with all requirements, specifications, terms, and conditions set forth in the Format and Guidelines for Proposals, including any addenda thereto. All such provisions are hereby incorporated by reference and shall remain in full force and effect throughout the duration of this Contract unless otherwise modified in writing and approved by the Office of Purchasing, Travel and Fleet Management.

### **1.8. Termination**

Either Party may terminate this contract for any reason upon at least thirty (30) calendar days' prior written notice to the other Party.

SAMPLE

**IN WITNESS WHEREOF**, the Parties have executed this contract under seal as of the Contract Effective Date.

**STATE OF MISSISSIPPI**

By its authorized agent:

\_\_\_\_\_

*(Signature)*

Name: Kizzie Shorter

Title: Statewide Procurement Analyst II

Date: \_\_\_\_\_

**Address for Notices:**

State of Mississippi

Department of Finance and Administration

Office of Purchasing, Travel and Fleet  
Management

501 North West Street

Suite 701-A

Jackson, Mississippi 39201

ATTN: Kizzie Shorter

Telephone: 601-359-5222

Email: kizzie.shorter@dfa.ms.gov

**VENDOR NAME**

By its authorized agent:

\_\_\_\_\_

*(Signature)*

Name:

Title:

Date: \_\_\_\_\_

**Address for Notices:**

Vendor Name

ATTN:

Telephone:

Email: